

Opinion in Chambers

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SUPREME COURT OF THE UNITED STATES

No. 26A3

DANNYBEC, SPEAKER OF THE HOUSE OF
REPRESENTATIVES, ET AL. *v.* WRIGHTSONPHOBIA,
ET AL.

ON APPLICATION FOR STAY

[May 11, 2026]

JUSTICE FEELINGS, Application Justice.

Defendant-Petitioner dannybec seeks a stay to the writ of *mandamus* entered against him by the United States District Court for the District of Columbia in the matter of *wrightsonphobia, et al. v. dannybec, et al.* No. 1:26-CV-0030; 1:26-CV-0031 (consolidated) (D.D.C. 2026).

Petitioner contends that the act of administering an oath of office is a “legislative act,” and is somehow thus free from review. In this way, I construe the argument of the petitioner to be that the administration of oaths is a discretionary function of the Speaker of the House. Let me be clear: it is not—the administration of oaths is a ministerial act. While the Speaker ought to be afforded a wide range of deference as to the scheduling of such matters, that deference cannot go so far as to escape the bounds of administrative coordination and practical realities. Where the oath of any office is withheld for political purposes, the Speaker unjustly and unconstitutionally violates the entitlement of that member, who is otherwise qualified to be seated, to exercise the functions and powers of his office.

It is well within the authority of the District Court to make evidentiary findings as to whether the Speaker acted

Opinion in Chambers

for administrative and practical reasons or for political ones. Any error of the District Court in making these evidentiary findings ought to be handled first with a motion to reconsider, and then on appeal as a separate matter. No motion nor appeal has thus been made, and no intention to appeal has been specified. Instead, this application for stay holds onto the existing *certiorari* question like Jack clings to a door in *Titanic*. Similarly, like Jack, the application will succumb to the cold water.

Being a ministerial act, mandated by the Congressional Organization and Operations Act, the application for stay submitted this 10th of May, 2026, is denied in full.

It is so ordered.